

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 6503/04
Eugeniu MOROZAN
against Moldova

The European Court of Human Rights (Third Section), sitting on 5 June 2012 as a Chamber composed of:

Josep Casadevall, *President,*
Corneliu Bîrsan,
Egbert Myjer,
Ján Šikuta,
Ineta Ziemele,
Nona Tsotsoria,
Kristina Pardalos, *judges,*

and Santiago Quesada, *Section Registrar,*

Having regard to the above application lodged on 27 January 2004,

Having regard to the decision taken by the President of the Chamber to appoint Mr Ján Šikuta to sit as *ad hoc* judge (Article 26 § 4 of the Convention and Rule 29 § 1 of the Rules of Court), as Mr Mihai Poalelungi, the judge elected in respect of the Republic of Moldova, had resigned (Rule 6),

Having regard to the declaration submitted by the respondent Government on 16 March 2012 requesting the Court to strike the application out of the list of cases and the applicant's reply to that declaration,

Having deliberated, decides as follows:

THE FACTS

1. The applicant, Mr Eugeniu Morozan, is a Moldovan national, who was born in 1983 and lives in Floreni. He was represented before the Court by Mr T. Ciorap, a lawyer practising in Chisinau.

2. The Moldovan Government ("the Government") were represented by their Agent, Mr V. Grosu.

3. On 13 June 2001 the applicant was arrested on charges of car theft. According to the applicant, he was ill-treated on numerous occasions while in detention. He was subjected to Palestinian hanging, punched, kicked and beaten with a truncheon on his body, head and the soles of his feat. According to a medical report dated 4 July 2001 the applicant had an oedema and a bruise on his right thigh. According to another medical report dated 5 September 2001 he suffered from a head concussion.

4. The applicant was later found guilty and sentenced to nine years' imprisonment.

5. On an unspecified date the applicant complained to the Chişinău Prosecutor's Office about the alleged ill-treatment. However, his complaint was dismissed as ill-founded on 19 February 2004 on grounds which were not communicated to the applicant.

6. On 3 April 2008 the applicant was released from detention.

COMPLAINTS

7. The applicant complained under Article 3 of the Convention about his ill-treatment by the police while in detention. He also raised complaints under Article 5 about the unlawfulness of his pre-trial detention and under Article 6 of the Convention about the unfairness of the criminal proceedings against him. In respect of the latter complaint, the applicant argued that the courts had wrongly assessed the facts of the case and some witnesses were not formally warned about their criminal liability for wrongful testimony. The applicant also complained under Articles 7, 8, 9, 10, 11, 12, 13 and 15 of the Convention without substantiating his complaints.

THE LAW

The complaint under Article 3 of the Convention

8. On 16 March 2012 the Government informed the Court that they proposed to make a unilateral declaration with the following content:

> "The Government acknowledge that there has been a breach of the applicant's rights guaranteed by Articles 3 of the Convention [...]
>
> The Government propose to award the applicant a global sum of EUR 15,000. This sum, which is to cover any pecuniary and non-pecuniary damage as well as costs and expenses will be converted into Moldovan Lei at the date applicable on the date of payment and free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court pursuant to Article 37 § 1 of the European Convention on Human Rights. In the event of failure to pay this sum within the said three-month period, the Government undertake to pay simple interest on it, from expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the case and of any other claims that may appear from the circumstances of the present case.
>
> In the lights of the above-mentioned, the Government invite the Court to strike the application out of its list of cases in accordance with Article 37§ 1 (c) of the Convention."

9. In a letter of 18 April 2012 the applicant expressed the view that the Government's unilateral declaration should not be accepted by the Court because the Government did not expressly acknowledge that he had been tortured in the Police Station of the Ciocana sector and because the amount proposed by the Government was insufficient. He also expressed the view that the Government shall also acknowledge a breach of Article 13 of the Convention and compensate for the moral suffering of his parents.

10. The Court notes that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court to strike a case out of its list in particular if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

11. Article 37 § 1 *in fine* includes the proviso that:

> "However, the Court shall continue the examination of the application if respect for human rights as defined in the Convention and the Protocols thereto so requires."

12. The Court also notes that under certain circumstances, it may strike out an application or part thereof under Article 37 § 1 (c) of the Convention on the basis of a unilateral declaration by a respondent Government even if the applicant wishes the examination of the case to be continued. To this end, the Court will examine the declaration carefully in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (see *Tahsin Acar v. Turkey*, [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI, and *Melnic v. Moldova*, no. 6923/03, §§ 22-25, 14 November 2006).

13. Having regard to the nature of the admissions contained in the Government's unilateral declaration of 16 March 2012 and to the amount of compensation proposed by the Government which is consistent with the amounts awarded in similar cases (see *I.D. v. Moldova*, no. 47203/06, § 57, 30 November 2010 and *Bisir and Tulus v. Moldova*, no. 42973/05, § 68, 17 May 2011), the Court considers that it is no longer justified to continue the examination of this part of the application (Article 37 § 1 (c)) (see, for the relevant principles, *Tahsin Acar*, cited above, and *Meriakri v. Moldova* (striking out), no. 53487/99, 1 March 2005).

14. In the light of all the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of this part of the application (Article 37 § 1 *in fine*).

Accordingly it should be struck out of the list.

Remaining complaints

15. In so far as the applicant's complaint under Article 13 of the Convention taken together with Article 3, the Court considers that it raises no separate issue.

16. As to the applicant's remaining complaints, the Court considers them to be unsubstantiated and notes that there is nothing in the file to suggest that the provisions invoked by the applicant have been violated. Accordingly, this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention and must be rejected pursuant to Article 35 § 4 of the Convention.

For these reasons, the Court unanimously

Takes note of the terms of the respondent Government's declaration;

Decides to strike the application out of its list of cases in so far as it relates to the complaint under Article 3 of the Convention;

Decides that no separate issue arises under Article 13 of the Convention;

Declares the remainder of the application inadmissible.

Santiago Quesada
Registrar

Josep Casadevall
President